

Pujehun Youths for Development (PYD)

Sakrim Building
1 District Office Road, Pujehun

The Constitution (Modified: 22 November 2013)

Article 1 Name, Place, Business Year

The Organisation shall be known as the “Pujehun Youths for Development”. It shall be registered as a Non-Governmental Organisation (NGO) with the Ministry of Finance and Economic Development in Freetown under the name “Pujehun Youths for Development”, hereafter referred to as PYD. The Organisation shall be based at the Sakrim Building No. 1 District Office Road, Pujehun. The Postal Address shall be P.O. Box 1315, Freetown, and the business year shall be the calendar year.

Article 2: Background Information

PYD was founded in 1997 by student volunteers from the District, as a result of hardship, hunger, diseases and poverty in the Gondama Displaced Camp. PYD registered with the Ministry of Local Government and Community Development as a Community-Based Organisation (CBO). At the peak of the civil war (1999), PYD became inactive. In July 2002, with support from the Germany-Based Charitable Organisation - Kindernetzwerk Sierra Leone e.V. (KNSL), PYD was reactivated. Since then, PYD has been pulling together the strength of young men and women in Sierra Leone to become proactive participants in community work: raising self-help awareness among communities. This has led to the formation of a number of functional social groups, some of which have become an extremely relevant resource pool for NGOs, as well as Government and the Pujehun and Bonthe District Councils, for initiatives such as school building projects, road construction works, food security programmes, income generating activities and other community actions.

Article 3: Vision, Mission and Core Values

Vision: Shall work to create a society where youth and women are effectively engaged in their communities in all levels of human development, poverty alleviation and social cohesion processes.

Mission: Shall inspire youth and build resilient communities in Pujehun and Bonthe Districts by promoting human development at all levels and across all sectors of society, through programmes/projects focused on education, health & sanitation, human rights and poverty alleviation.

Core values: integrity, transparency, accountability, solidarity, courage, justice and democracy.

Article 4: Objectives:

- a) Shall mobilize funds and resources within and out of Sierra Leone for purposes aimed at contributing to poverty mitigation in marginal communities through empowerment of youth and supporting vulnerable households to improve their livelihoods.
- b) Shall deliver capacity building (education & training) to enhance the knowledge and skills of youth and women, helping them to meet requirements for (self)employment.
- c) Shall promote the development of children by supporting them to exercise their rights and to access quality education at an early age and through their educational careers.
- d) Shall collaborate with the government, international and local NGOs, CBOs and Civil Society Organisations (CSOs) on research, advocacy and capacity building and in propagating innovation and modernisation in Pujehun and Bonthe Districts.
- e) Shall initiate pioneering projects/programmes that can serve as examples and models in various areas of community development.
- f) Shall work actively with other local, national and international actors engaged in human development activities in Pujehun and Bonthe Districts.

Article 5: Membership:

Membership (both active and in-active) shall be open to persons of all ages and social status and to group (youth and women) and community associations, who/which acknowledge this constitution and are committed to the active promotion and realization of the vision of PYD. Hence, a person or an association wishing to be considered for membership shall be required to fill a membership form and submit it to the Management Board (MB) through the secretariat. The MB shall have to consider the eligibility of applicant on case-by-case basis, which shall be confirmed upon payment of registration fees. Annually registration fee for individuals shall be Le 1,000.00 and that of group/association shall be Le 20,000.00. Students/youth shall be eligible to pay annual membership contribution of Le 12,000.00; while ordinary adult members shall pay an annual contribution of Le 48,000.00. Individuals, as well as organisations, institutions, government agencies, and businesses who wish to support PYD as honorary members without taking on full memberships, shall make financial and/or material contributions. Such honorary members shall be entitled to receiving information about PYD's activities. They shall also be entitled to attend membership meetings in advisory capacities, but they shall have no voting rights.

5.1 Termination of Membership:

Individual Membership shall be terminated upon voluntary withdrawal, death or expulsion. Hence, a member who wishes to resign from PYD shall have to give the secretariat at least three weeks' notice in writing of his/her intention to voluntarily withdraw. Generally, a membership shall be terminated by a Board decision either upon fail to pay relevant dues after two written reminders, or for other reasons deemed to be against the purpose of the organisation. However, an appeal may be launched against such a decision at a membership meeting, which shall be submitted to the secretariat within one month of the receipt of the decision. An honorary membership shall be terminated if the Board feels that such membership might prejudice the interest of PYD, or of said member or association have repeatedly failed to meet his/her/its voluntary commitment to PYD in spite of repeated appeal.

Article 6: Structure: PYD shall be structured according to the following system:

- Management Board (MB))
- The Executive Director
- Management Team
- Project Staff/Office Staff.

The responsibilities of each project staff/ office staff member engaged by PYD shall be outlined in his/her job descriptions / contracts

6.1: Management Board (MB): The MB shall provide organisational leadership for PYD. It shall be composed of the following seven membership positions that are filled either through elections, selections or appointment at a PYD general membership meeting to serve for a three-year term.

- Chairperson
- Vice Chairperson
- Secretary
- Assistant Secretary
- Treasurer and Logistic Officer
- Representative for Women's Interest
- Representative for Youth's Interest

Only paid-up members shall serve on the MB, and each one of them shall represent PYD in judicial and extra-judicial matters. Shall a MB member lose his/her membership of PYD, (s)he shall automatically lose his/her MB position. Shall a MB member wish to withdraw from PYD before the end of his/her term of office, an extraordinary membership meeting shall be called to appoint a replacement for the remainder of the term. The MB shall be headed by the Chairperson. Board Members as a whole shall be responsible for creating and defining the Mission of PYD as a Non-Governmental Organisation (NGO). This shall take the form of a mission statement. The statement shall include: (a) The purpose of PYD; (b) The core values of PYD; and (c) What PYD seeks to accomplish. In overseeing the budget, Board Members shall receive financial and accounting balance sheets and reports. The MB shall be responsible for:

- Reviewing the Mission of PYD regularly - look at the programmes/projects, activities, and/or fundraisers of the NGO - in order to assess whether any revisions are necessary, or to make sure the Organisation has not drifted from its purpose
- Ensuring that the Organisation has enough human and financial resources to serve its mission and purpose
- Formulating a fundraising strategy and approving a case statement that explains why the Organisation needs money and what it will be used for
- Supporting and working well with the Executive Director in his/her management decisions, in recruiting management staff for projects/programmes and setting fundraising goals
- Making policies and taking decisions for the Organisation, exclusive of the day-to-day management of external donor funded projects/programmes
- Helping to develop programmes and action plans and approving annual budget proposals
- Organising annual general meetings (AGMs) to approve new project/programme, approve annual financing plans for the coming year
- Articulating the goals, mission, and purpose of the Organisation in order to promote it and help the community understand PYD's programmes and activities

6.2: The Executive Director: The MB shall appoint the Executive Director (ED) to provide leadership for PYD's daily activities and supervise the respective teams managing projects/programmes. The ED shall:

- Supervise the implementation of the day-to-day activities of PYD (managing people, property, and assets towards fulfilling the goals that management and the MB sets.
- Organize, control and monitor the day-to-day activities of PYD operation.
- Sign all notes, agreements, contracts, memorandums and other instruments made and entered into and on behalf of PYD.
- Hire and dismiss key project/programme management team members, maintain a positive relationship with the MB, and lead the development of fundraising strategies and goals.
- Approve all financial disbursements

- Ensure financial transparency
- Promote PYD and ensure good relations with the community and government
- Report quarterly on all activities to the MB
- Perform other duties as assigned by the MB.

6.3: Projects/Programmes Management Teams (P/PMT): In consultation with the MB, the ED shall additionally employ suitable experts and support staff (P/PMT) or contract specialists on an honorarium basis to implement specific projects/programmes. Those position holders whose recruitments shall take into active consideration the required experience and specific qualifications, shall be answerable directly to the ED. They shall be required to work with the ED, the target beneficiaries and other actors to ensure that the respective project/programme objectives are fulfilled.

Article 7: Financing: The income of PYD for projects/programmes shall be derived from:

- Membership registration fees and contributions
- Donations from individuals
- Funds from government ministries, agencies and institutions; international NGOs; corporates; private trusts and foundations; and international funding institutions
- Selling products and services
- Organising fund-raising events

Article 8: Meetings

8.1: Board Meetings: All MB decisions shall be taken at meetings convened by the chairperson or the Vice, as the case might be. An agenda for a meeting shall be circulated in advance and decision taking by the MB shall be by a simple majority vote, whereby all members shall be obliged to abide by irrespective of their previous positions before voting took place.

8.2: Membership Meetings: At least one annual general membership meeting shall be held in each calendar year, whereby the secretariat shall send a written notification to each registered member at least 4 weeks ahead of the general meeting. The notice shall include a proposed agenda. Members and honorary supporters of PYD shall submit suggestions to be included in the agenda by sending notice in writing to the MB Chairman at least two weeks before the date of the meeting. The Chairman shall announce those additional matters prior to the start of the meeting. The meeting itself shall decide whether to accept additional items for inclusion in the agenda. Every member of PYD shall have one vote at a membership meeting. A member who may not be able to attend a specific membership meeting shall give any other member a proxy vote in his/her place. No member shall cast more than two votes on behalf of absent members. A membership meeting shall have a quorum comprising 50%. Where there is no quorum, the MB shall call another meeting within six weeks with the same agenda. That second meeting shall be deemed to have a quorum irrespective of how many members shall be in attendance. That fact shall be included in the notice of the meeting.

8.3: Extraordinary Meeting: The MB shall call extraordinary meetings where such actions shall be in the interest of PYD.

Article 9: Minutes: Membership meetings and decisions shall be recorded, signed and kept by the Secretary. Membership meetings shall review / consider the following:

- MB's annual report
- Fees to be paid by members
- Election of in-coming MB
- Appeals against decisions of the MB to expel members
- New project proposals
- Amendment to the constitution

Article 10: Dissolution of PYD: A decision to dissolve the organisation shall require a resolution passed at a membership meeting and supported by three-quarters of the votes of the members present or by proxy. Assets after liquidation shall be used in accordance with the provisions of this constitution. The above provisions shall also apply should the PYD be dissolved for any other reason, or should it lose its legal capacity.

Article 11: Auditors: The accounts of PYD and the financial activities of its administrators shall be audited annually and certified by three non-MB members who shall be appointed by the membership meeting. The audit report shall be made public to members, honorary supporters and donors as the case might be. The Board may institute periodic auditing regimes as and when necessary.

Article 12. Financial Accounts and Bank Accounts: The Constitution shall provide for one or more bank Accounts to be set up, and make adequate provision for the control of such Accounts, including authority for signing cheques. Signatories to such Accounts shall be two of the following: Chairman, Executive Director, Secretary and Finance Officer.

Secretary General